

HOUSE No. 4175

The Commonwealth of Massachusetts

PRESENTED BY:

Hadley Luddy and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the charter of the town of Provincetown.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>5/21/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>5/21/2025</i>

HOUSE No. 4175

By Representative Luddy of Orleans and Senator Cyr, a joint petition (accompanied by bill, House, No. 4175) of Hadley Luddy and Julian Cyr (by vote of the town) relative to fire department governance in the town of Provincetown. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the charter of the town of Provincetown.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Charter of the town of Provincetown, which is on file in the office of
2 the Archivist of the Commonwealth as provided in Section 12 of Chapter 43B of the General
3 Laws, is hereby amended as follows:

4 a. Chapter 4, Section 3.d. of the Charter is amended to add “Fire Chief” to the list of
5 department heads appointed by the Town Manager subject to the approval of the Select Board, as
6 follows (additional language shown in boldface):

7 d. The Town Manager may hire, promote and remove all Town Staff, except the secretary
8 to the Select Board. Any hiring decision by the Town Manager with regard to the following
9 positions shall be subject to confirmation by the Select Board, except that if the Select Board
10 fails to confirm or object within fifteen (15) days of the notice of such proposed action, such
11 failure shall constitute implied confirmation:

12 1) Assistant Town Manager

13 2) Finance Director

14 3) Police Chief

15 4) Town Clerk

16 5) Fire Chief

17 c. Chapter 7, Section 3 of the Charter shall be deleted in its entirety and replaced with the
18 following text:

19 a. The Town Manager shall appoint for a one-year term a Board of Fire Engineers,
20 consisting of not more than seven members.

21 b. The Town Manager shall appoint a Fire Chief with the approval of the Select
22 Board under authority of this Charter. The parties shall enter into a Contract describing the
23 authority, responsibilities, rights and entitlements of the Fire Chief. Said Chief is not required to
24 be a member of the Board of Fire Engineers, but the Board may recommend candidate(s) to the
25 Town Manager for appointment as Fire Chief.

26 c. The Town Manager shall make all appointments within the Fire Department after
27 consultation with the Fire Chief on the suitability of proposed candidates. For all appointments
28 within the Fire Department, applicants, whether temporary or permanent, full time, part time or
29 on call, who are residents of the Town of Provincetown shall be given preference.

30 d. The Fire Chief shall have responsibility within the legal authority of the
31 Department for the extinguishment of fires in Town and the protection of life and

property in the case of fire. The Fire Chief also oversees the provision of Emergency Medical Services (EMS) within Town. The Fire Chief is authorized to coordinate on behalf of the Town with other legal authorities within and adjoining the Town, including the Federal Government, the Commonwealth of Massachusetts, Barnstable County, and other Towns on the Cape.

e. The Fire Chief shall support the Field Director during a declared emergency situation.

SECTION 2. This act shall take effect upon its passage;

Or to take any other action relative thereto.